

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Alexander Opoku-Agyemang	Team: Squad #2	CCRB Case #: 201601630	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 02/27/2016 3:30 PM	Location of Incident: § 87(2)(b)	Precinct: 30	18 Mo. SOL 8/27/2017	EO SOL 8/27/2017	
Date/Time CV Reported Sat, 02/27/2016 4:16 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Sat, 02/27/2016 4:16 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Robert Lenihan	00746	949202	030 PCT
2. POM Steven Moran	02932	947275	030 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Robert Lenihan	Abuse: Police Officer Robert Lenihan stopped § 87(2)(b)	§ 87(2)(b)
B.POM Steven Moran	Abuse: Police Officer Steven Moran stopped § 87(2)(b)	§ 87(2)(b)
C.POM Robert Lenihan	Discourtesy: Police Officer Robert Lenihan spoke discourteously to § 87(2)(b)	§ 87(2)(b)
D.POM Robert Lenihan	Abuse: Police Officer Robert Lenihan threatened to arrest § 87(2)(b)	§ 87(2)(b)
E.POM Robert Lenihan	Force: Police Officer Robert Lenihan used physical force against § 87(2)(b)	§ 87(2)(b)
F.POM Robert Lenihan	Abuse: Police Officer Robert Lenihan frisked § 87(2)(b)	§ 87(2)(b)
G.POM Robert Lenihan	Abuse: Police Officer Robert Lenihan searched § 87(2)(b)	§ 87(2)(b)
H.POM Steven Moran	Abuse: Police Officer Steven Moran entered § 87(2)(b) § 87(2)(b) in Manhattan.	§ 87(2)(b)

Case Summary

§ 87(2)(b), § 87(2)(g)

On February 27, 2016, at some point prior to 3:30 p.m., § 87(2)(b) and his fiancé § 87(2)(b) went to the roof of § 87(2)(b) in Manhattan (BR02 & BR03), the building in which they resided, to take photos. The door to the roof closed and locked behind them. § 87(2)(b) got the attention of another resident of the building, § 87(2)(b) and requested that he open the door for them. § 87(2)(b) called 911 and reported that two individuals who did not reside in the building were locked on the roof (BR04 – BR06). The dispatcher reported to PO Robert Lenihan and PO Steven Moran of the 30th Precinct that two individuals were trespassing on the roof of the building (BR07 & BR08).

PO Lenihan and PO Moran arrived at the location and spoke with § 87(2)(b). They then went to the roof and stopped § 87(2)(b) and § 87(2)(b) (**Allegations A and B**). PO Lenihan allegedly spoke discourteously to § 87(2)(b) throughout the ensuing interactions, allegedly using the words “fuck” and “shit” repeatedly and calling § 87(2)(b) a “smartass” (**Allegation C**). PO Lenihan allegedly threatened to arrest § 87(2)(b) (**Allegation D**). PO Lenihan allegedly grabbed § 87(2)(b)'s arm, spun him around, handcuffed him, and then shook him back and forth (**Allegation E**). PO Lenihan frisked the outside of § 87(2)(b)'s clothing (**Allegation F**) and then allegedly entered all of the pockets on § 87(2)(b)'s clothing and pulled them out (**Allegation G**). The officers went with § 87(2)(b) and § 87(2)(b) to the hallway in front of their apartment, where § 87(2)(b) opened the door and entered. PO Moran then allegedly reached into the apartment and pulled the door shut (**Allegation H**). PO Lenihan uncuffed § 87(2)(b) and left. PO Moran filed UF250 Stop, Question, and Frisk Reports in regards to the stops of § 87(2)(b) and § 87(2)(b) (BR09).

No video footage was found for this incident. CCRB investigators went to the incident location on March 4, 2016, and observed cameras on the exterior and in the lobby, laundry room, and basement of the building but none in the hallways or the area leading to the roof. Furthermore, after conferring with the building's management, they were informed that these cameras were non-functioning.

Mediation, Civil and Criminal Histories

On § 87(2)(b) § 87(2)(b) filed a Notice of Claim with the City of New York in regards to this incident, alleging that officers subjected him to bias-based profiling, assault, battery, false arrest, false imprisonment, intentional infliction of emotional distress, negligent infliction of emotion[al] distress, and negligence and seeking a yet-to-be-determined amount as redress (BR10). Due to § 87(2)(b)'s lawsuit, this complaint was deemed unsuitable for mediation. § 87(2)(b)

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB case involving § 87(2)(b) or § 87(2)(b) (BR12).

- Police Officer Lenihan has been a member of the NYPD for five years and has had four allegations in two cases with no substantiated allegations. § 87(2)(g)
- Police Officer Moran has been a member of the NYPD for seven years and has had four allegations in three cases with no substantiated allegations. § 87(2)(g)

Potential Issues

§ 87(2)(b) stated that, in addition to § 87(2)(b) he attempted to get the attention of a female who was on the § 87(2)(b). Neither § 87(2)(b) nor § 87(2)(b) saw this female in the hallway when the officers brought them back to the § 87(2)(b). He did not know this female or which apartment she resided in. Both officers stated that they observed a female in the § 87(2)(b) hallway, in addition to § 87(2)(b) when they first arrived on the § 87(2)(b). They did not obtain any identifying information about this female and did not see her again when they returned to the § 87(2)(b) after going to the roof. § 87(2)(b) however, stated that he saw no other civilians in the hallway beside himself and § 87(2)(b) and § 87(2)(b) at any point during this incident. § 87(2)(g)

Findings and Recommendations

Allegation A – Abuse of Authority – Police Officer Robert Lenihan stopped § 87(2)(b)

Allegation B – Abuse of Authority – Police Officer Steven Moran stopped § 87(2)(b)

§ 87(2)(b) filed his initial complaint with the CCRB via the call processing system on February 27, 2016. A follow-up call was placed to § 87(2)(b) on March 1, 2016, by CCRB’s Intake Unit and he provided additional details. § 87(2)(b) and § 87(2)(b) were interviewed by the CCRB on March 15, 2016. § 87(2)(b)’s interview was conducted with a Japanese interpreter, though § 87(2)(b) demonstrated an understanding of English and answered some of the investigators’ questions directly in English). PO Moran and PO Lenihan were interviewed by the CCRB on March 25, 2016. A statement was obtained from § 87(2)(b) on March 4, 2016 (BR13). On March 4, 2016, the CCRB obtained additional relevant information from § 87(2)(b) (BR14), the site manager for § 87(2)(b), the management company for § 87(2)(b) § 87(2)(b) (BR15), the regional manager for § 87(2)(b), the ownership company for § 87(2)(b) and the building porter for § 87(2)(b) who only provided his name as § 87(2)(b) (BR14).

The general contours of this incident are undisputed: § 87(2)(b) and § 87(2)(b) went to the roof through one of the three doors that lead from the § 87(2)(b) of the building to the roof. The door locked behind them and they were unable to reenter through either of the other two doors. An argument between § 87(2)(b) and § 87(2)(b) began at this point and continued through the incident, even after the arrival of officers. § 87(2)(b) got § 87(2)(b)’s attention and § 87(2)(b) § 87(2)(b) called 911 and reported that two people were trespassing on the roof. PO Lenihan and PO Moran responded to the building, spoke to § 87(2)(b) on the § 87(2)(b) and then went to the roof. Once on the roof, PO Lenihan and PO Moran stopped § 87(2)(b) and § 87(2)(b) and

instructed them to walk to the wall beside the door. The officers questioned them about their reason for being on the roof, with PO Lenihan speaking to § 87(2)(b) and PO Moran speaking to § 87(2)(b). § 87(2)(b) and § 87(2)(b) informed the officers that they had been on the roof taking pictures of the view. PO Lenihan informed § 87(2)(b) that they were responding to a call of individuals trespassing on the roof. The officers requested identification and § 87(2)(b) stated, at least initially, that he did not have identification. While they were speaking to the officers, § 87(2)(b) spoke in a raised voice towards § 87(2)(b). PO Lenihan handcuffed and frisked § 87(2)(b). At some point § 87(2)(b) and § 87(2)(b) informed the officers that they resided on the § 87(2)(b) and at some point § 87(2)(b) informed the officers that he was a § 87(2)(b). All four of them walked to the hallway in front of § 87(2)(b) and § 87(2)(b)'s apartment. § 87(2)(b) entered the apartment and PO Lenihan uncuffed § 87(2)(b). According to EVENT #§ 87(2)(b) (BR04), 14 minutes elapsed from the time the officers reported that they had arrived at § 87(2)(b) and the time that they provided final dispositions of 10-91 (non-crime corrected) and 10-93Q (other report prepared).

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

§ 87(2)(b) stated that, on multiple occasions before this incident, he had gone to the roof of § 87(2)(b) and on at least one occasion had reentered the building through a different door than the one he exited onto the roof through. He was aware that the doors to the roof lock when closed and cannot be opened from the outside and warned § 87(2)(b) of this fact before they went to the roof, requesting that she bring an object to prop the door open. § 87(2)(b) however, stated that he was unaware of any signs on the doors or any rules barring access to the roof.

As per § 87(2)(b) upon entering the roof, PO Lenihan instructed him to stand against the wall. § 87(2)(b) proceeded to stand with his back against the wall. PO Lenihan gave multiple orders throughout their subsequent interactions to § 87(2)(b) to get against the wall despite the fact that he § 87(2)(b) stood against the wall after PO Lenihan first instructed him to do so and continued to do so throughout. PO Lenihan requested § 87(2)(b)'s ID and § 87(2)(b) replied that he did not have ID but that he lived on the § 87(2)(b). § 87(2)(b) had forgotten that he had his passport in his jacket at the time and subsequently, as they continued to speak, he found his passport and showed it to PO Lenihan, who replied that it did not have § 87(2)(b)'s address on it. § 87(2)(b) replied that it was the only ID he had and PO Lenihan told § 87(2)(b) to "Shut the fuck up." PO Lenihan walked closer to § 87(2)(b) and informed him that he was going to search and handcuff him and that he was committing criminal trespassing. At this point that § 87(2)(b) raised his voice and stated to § 87(2)(b) "See, I told you." An argument ensued between § 87(2)(b) and PO Lenihan over whether or not they were in fact committing criminal trespassing, during which § 87(2)(b) informed PO Lenihan that he was a § 87(2)(b).

§ 87(2)(b) stated that he § 87(2)(b) had a calm tone and demeanor throughout his interactions with PO Lenihan. § 87(2)(b) stated that he “categorically” never raised his voice or spoke loudly to the officers but that he raised his voice “quite loudly” when he made the comment, “See I told you,” to § 87(2)(b). He stated that, during the initial portions of their interactions, PO Lenihan was “aggressive but he wasn’t screaming” but that, upon hearing about § 87(2)(b)’s occupation, PO Lenihan “snapped” and began to yell and scream at § 87(2)(b). PO Lenihan instructed § 87(2)(b) to turn around and get against the wall. He grabbed § 87(2)(b) by his right elbow or right forearm, quickly spun him around, handcuffed his left wrist, and then his right wrist. PO Lenihan then shook § 87(2)(b) back and forth and screamed at him.

As per § 87(2)(b) when the officers arrived, § 87(2)(b) was standing approximately 3 feet away from the wall. PO Lenihan repeatedly told § 87(2)(b) to get against the wall throughout the incident but § 87(2)(b) remained in this position and never got against the wall and was “arguing with them” about why he had to get against the wall. After § 87(2)(b) took out his passport, PO Lenihan took out his handcuffs and told § 87(2)(b) to turn around because they were going to arrest him and take him downtown. § 87(2)(b) replied that there was no reason to handcuff him. § 87(2)(b) however, complied and turned around and put his hands behind his back on his own and then PO Lenihan handcuffed him. § 87(2)(b) did not observe PO Lenihan make any physical contact with § 87(2)(b) before placing the handcuffs on him. She did not observe PO Lenihan pushing or shoving § 87(2)(b).

As per § 87(2)(b) PO Lenihan spoke with a “threatening” tone of voice but was not “screaming.” PO Lenihan’s tone of voice remained the same throughout the incident and he maintained the same tone of voice while speaking to § 87(2)(b) after § 87(2)(b) was handcuffed that he had had from the beginning of the incident. § 87(2)(b)’s tone of voice was “a little louder” than that of the officer initially but he toned down his voice after he was handcuffed.

As per § 87(2)(b) after he spoke to the officers and informed them that he did not know the individuals on the roof, the officers entered the roof and allowed the door to close behind them. § 87(2)(b) immediately followed them up the stairs to the roof, opened the door, and observed § 87(2)(b) and § 87(2)(b) neither of whom he knew. § 87(2)(b) heard one of the officers ask what they were doing up there. § 87(2)(b) replied that they were up there taking pictures. The officer then stated requested to see ID. § 87(2)(b) yelled repeatedly, “What the fuck you need my ID for?” and “What you need a fucking ID for?” One of the officers held the door open and § 87(2)(b) returned to the bottom of the stairs. § 87(2)(b) remained there for approximately one minute and listened to the conversation on the roof. One of the officers replied to § 87(2)(b) “Listen man, I’m not cursing at you, what you cursing at? You’re in an area you don’t belong, I gotta ask you for your ID. Let me see some ID.” § 87(2)(b) responded by continuing to yell. § 87(2)(b) walked back to his apartment and did not see what occurred between the officers and the individuals after this point.

As per § 87(2)(b) and § 87(2)(b) residents are not allowed on the roof of § 87(2)(b) and are aware of this. § 87(2)(b) specified that this rule was a result of Department of Housing and Urban Development regulations. CCRB Investigators visited § 87(2)(b) on March 4, 2016, and observed all three doors leading to the roof (BR14 &

BR16-19). Two of the doors had signs on them that read “Emergency Exit only – Alarm will sound.” The third door had no sign but had a wire attached to it that § 87(2)(b) identified as the trigger for the alarm. § 87(2)(b) however, was unsure whether the alarms that were supposed to trigger were working at the time of the incident.

§ 87(2)(g)

As per both PO Lenihan and PO Moran, their understanding was that it was criminal trespassing for anyone, even residents, to be on the roof of a building that did not allow roof access. As per PO Lenihan, upon arriving at the location and speaking to § 87(2)(b) and the unidentified female, his intention was to go to the roof to find out “their purpose on the roof, maybe there was workers on the roof, maybe they had legitimate business on the roof.”

As per PO Lenihan and PO Moran, when they entered the roof, § 87(2)(b) and § 87(2)(b) were standing approximately halfway between the wall beside the door and the ledge at the edge of the roof. PO Lenihan estimated the distance from the wall to the edge to be approximately seven feet and PO Moran estimated it to be approximately 10 to 15 feet. PO Lenihan asked them to put their backs against the wall because it was a “safe spot.” As per both officers, § 87(2)(b) complied while § 87(2)(b) did not, even after PO Lenihan repeated the instruction multiple times. § 87(2)(b) became “very irate” and began screaming “very loudly” at both the officers and § 87(2)(b).

As per both officers, as PO Lenihan attempted to explain why they were there to § 87(2)(b) and ask him additional questions, § 87(2)(b) continued to scream at both § 87(2)(b) and the officers and did not get against the wall. At this point, approximately three to four minutes after PO Lenihan and PO Moran arrived on the roof, PO Lenihan decided to arrest and handcuff § 87(2)(b). PO Lenihan stated that he was arresting § 87(2)(b) for criminal trespassing and that he decided to handcuff § 87(2)(b) at that point for the safety of § 87(2)(b) and both officers and because he decided at that point to arrest § 87(2)(b). PO Lenihan stated that he feared that § 87(2)(b) would start physically fighting with § 87(2)(b) or with the officers and that this could lead to someone falling off the roof. PO Lenihan’s fear that § 87(2)(b) would start fighting was because of “the way he was looking at her, the way he was screaming at her, kinda stepped towards her a little bit, got a little bit close to her, in her little personal space, made me believe that maybe he would start fighting with her.”

PO Moran believed that PO Lenihan handcuffed § 87(2)(b) to “get everything under control” for “everybody’s safety” because § 87(2)(b) was “irate on a roof.” PO Moran feared that, if the situation escalated further, someone could fall off the roof. PO Moran, however, stated that he had no conversations with PO Lenihan, either before he handcuffed § 87(2)(b) or afterwards or after the incident, about why he handcuffed § 87(2)(b) and that his believes about why PO

Lenihan handcuffed § 87(2)(b) was based on his own observations.

A Google Earth photograph of the roof of § 87(2)(b) (BR08) shows that two of the three roof doors appear to be approximately 10 to 15 feet away from the edge of the roof, while the third is a much longer distance away. § 87(2)(b) provided a photograph of the door beside which this incident occurred (BR20). It indicates that the incident occurred beside one of the doors which is within approximately 10 to 15 feet of the edge of the roof.

§ 87(2)(g)

In order for a stop to be justified, an officer must have a reasonable suspicion that a person is committing, has committed or is about to commit a crime. Officers are allowed to use reasonable physical force, including handcuffing an individual, to effect the stop if the circumstances warrant. People v. DeBour, 40 N.Y. 2d 210 (1976) (BR21). A report of a crime and a description of a suspect provided to officers by an identifiable informant may provide reasonable suspicion to stop an individual fitting that description in the vicinity of the reported crime. People v. Heald, 2013 N.Y. Slip Op 52101 (Dist. Ct. Nassau Ct.-2013) (BR21). A person commits criminal trespass when he or she enters or remains unlawfully in or on premises that is enclosed in a manner designed to exclude intruders. Penal Law Section, 140.10 subsection A (BR22). Specifically, a license or privilege to enter or remain in a part of a premises open to the public does not grant license or privilege to enter or remain in a part that is not. Penal Law Section 140.00, subsection 5 (BR22). Probable cause requires merely the existence of facts and circumstances which when viewed together would lead a reasonable person who possesses the same expertise as the officer to conclude that a crime is being or was committed. DeBour. Specifically in regards to criminal trespassing, probable cause to arrest exists when it is more probable than not that that an individual had knowingly entered or remained unlawfully in a location. People v. Troy F., 138 A.D.2d 707 (1988) (BR21).

§ 87(2)(g)

§ 87(2)(g)

Allegation C – Discourtesy – Police Officer Robert Lenihan spoke discourteously to § 87(2)(b)

§ 87(2)(b) alleged that PO Lenihan repeatedly used the words “fuck” and “shit” throughout the incident, stating at various points, “Shut the fuck up,” “I don’t give a fuck who you are and I don’t give a fuck what you think you know about the law,” “I don’t give a fuck who you know,” “I don’t give a fuck what you want,” “I don’t give a shit who you know,” and that he could take § 87(2)(b) “downtown” any “fucking” time he wanted. § 87(2)(b) also stated that PO Lenihan repeatedly called him a “smartass.”

§ 87(2)(b) stated that she never heard PO Lenihan use the words “shit” or “fuck” but that she heard him refer to § 87(2)(b) as a “smartass” several times. While § 87(2)(b) answered most of the questions posed during her interview in Japanese, when asked about whether PO Lenihan used discourteous language, she answered in English, “No, no ‘fuck,’ no ‘shit’...he said like, ‘Yeah, you are a smartass.’”

PO Lenihan denied having used the words “fuck,” “shit,” or “smartass” during this incident and PO Moran denied having heard him use them.

§ 87(2)(g)

Patrol Guide sections 203-09 and 203-10 (BR23) require that NYPD officers be “courteous and respectful” in their public conduct and refrain from making discourteous or disrespectful remarks.

§ 87(2)(g)

Allegation D – Abuse of Authority – Police Officer Robert Lenihan threatened to arrest

§ 87(2)(b)

It is undisputed that PO Lenihan informed § 87(2)(b) that he was going to arrest him or that he could arrest him for criminal trespassing. § 87(2)(b) and § 87(2)(b) alleged that PO Lenihan made this statement prior to handcuffing § 87(2)(b) while PO Lenihan and PO Moran stated that

he made the statement after he handcuffed § 87(2)(b)

As discussed previously, as per PO Lenihan, at the point he handcuffed § 87(2)(b) he had decided to arrest him for criminal trespassing. PO Lenihan stated that later, once § 87(2)(b) opened the door and confirmed that they resided at the apartment, he felt “sympathy” for § 87(2)(b) because he himself had been § 87(2)(b), where § 87(2)(b) stated he was § 87(2)(b). He therefore decided to use his discretion to release § 87(2)(b) and not to go forward with the arrest. He “warned” § 87(2)(b) that “next time” he would be arrested for criminal trespassing.

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

Allegation E – Force – Police Officer Robert Lenihan used physical force against § 87(2)(b)

§ 87(2)(b) alleged that, prior to handcuffing him, PO Lenihan grabbed his right arm and spun him around. After handcuffing him, PO Lenihan shook him back and forth. § 87(2)(b) stated that he had Degenerative Joint Disease and that PO Lenihan grabbing his right arm and turning him cause the chronic pain in his right elbow to flare up.

As per § 87(2)(b)'s Medical Records (Privileged Documents), he was treated on § 87(2)(b), for pain in his elbow at § 87(2)(b). He was given a prescription for Voltaren Gel and was assessed for “possible PTSD secondary to assault” and referred to a Psychiatrist.

Both § 87(2)(b) and PO Lenihan stated that PO Lenihan instructed § 87(2)(b) to turn around and that § 87(2)(b) did so on his own, at which point PO Lenihan handcuffed him. They both denied that PO Lenihan made any physical contact with § 87(2)(b) before handcuffing him or that he pushed him after handcuffing him. PO Moran did not recall whether PO Lenihan turned § 87(2)(b) around or whether § 87(2)(b) turned around on his own before he was handcuffed and denied that PO Lenihan shook § 87(2)(b) after handcuffing him.

The UF250 filed by PO Moran for the stop of § 87(2)(b) noted that “physical force” was used against § 87(2)(b) and identified the physical force as “handcuffing suspect.” § 87(2)(g)

§ 87(2)(g)
§ 87(2)(g)

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

§ 87(2)(g)

Allegation F – Abuse of Authority – Police Officer Robert Lenihan frisked § 87(2)(b)

It is undisputed that PO Lenihan patted down the outside of § 87(2)(b)'s clothing after handcuffing him. PO Lenihan stated that he frisked § 87(2)(b) because at that point § 87(2)(b) was under arrest and he wanted to make sure that he had no weapons or anything sharp that he could use to hurt himself or the officers.

§ 87(2)(g)

While the mere existence of probable cause to arrest an individual does not provide justification for an officer to frisk the individual, officers are allowed to frisk an individual as part of the process of effecting an actual lawful arrest. People v. Reid 2014 NY Slip Op 08759 (2014) (BR21).

§ 87(2)(g)

Allegation G – Abuse of Authority – Police Officer Robert Lenihan searched § 87(2)(b)

§ 87(2)(b) stated that, immediately after frisking him, PO Lenihan entered all nine pockets on his jacket and pants and pulled the linings of the pockets “inside out.” While § 87(2)(b) mentioned the fact that officers frisked him in his initial complaint to the CCRB, he did not mention the alleged subsequent search until his sworn statement.

As per § 87(2)(b) and § 87(2)(b) after § 87(2)(b) was handcuffed, § 87(2)(b) was instructed by PO Moran to stand inside the doorway of the roof door. § 87(2)(b) stated that she did so but remained in position to see and hear what occurred throughout. She was in position to observe the frisk and provided an account of it § 87(2)(g). During her narrative, she stated that officers conducted a “body search” of § 87(2)(b) after he

was handcuffed. When asked to describe this “body search” she replied, via translator, “They didn’t actually put their hands in pockets, but they kind of patted on the pockets over his clothes.”

PO Lenihan and PO Moran both stated that, while PO Lenihan frisked § 87(2)(b) he did not reach into any of his pockets.

§ 87(2)(g)

_____.

Allegation H – Abuse of Authority – Police Officer Steven Moran entered § 87(2)(b) in Manhattan.

§ 87(2)(b) alleged that, after § 87(2)(b) entered their apartment, PO Moran reached into the apartment and pulled the door closed.

§ 87(2)(b) and PO Moran both stated that, after § 87(2)(b) entered the apartment, she herself pushed the door towards closure but left it slightly ajar and that PO Moran never reached in to pull the door shut. § 87(2)(b) stated that she did this in order to be able to still listen to what was occurring outside. PO Lenihan stated that § 87(2)(b) closed the door herself once she entered the apartment and that PO Moran never reached in to pull it closed.

§ 87(2)(g)

_____.

Squad: 2

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date